

Applicable Law Acts

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User Query :

My parents received a phone call in which the caller sounded exactly like me and claimed that I had been detained after an accident and urgently needed money. The caller also sent them a short video that appeared to show me asking for help. My parents transferred ₹75,000 before contacting me and discovering that the voice and video had been artificially generated. What legal provisions may apply?

Job Id. : qwen3-30b/Scenario 14/Combined Act

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Date : 29 August 2026

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AI-Powered Legal Intelligence Platform

INFORMATION TECHNOLOGY (IT) ACT, 2000

APPLICABLE SECTIONS

Section 66D — Punishment for cheating by personation by using computer resource

The caller/video impersonated the victim through electronic means and induced a money transfer.

Section 79A — Central Government to notify Examiner of Electronic Evidence

Potentially relevant if expert examination is needed to show the voice/video was synthetically generated.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 **Section 66D** is the clearest IT Act offence. Do not add a separate identity-theft provision solely from use of a cloned voice/video unless the required protected identifier is actually used.

✓ STRENGTHS & RIGHTS

1 The impersonation and resulting transfer are explicit.

✗ RISKS & OBLIGATIONS

1 Avoid claiming that the IT Act contains an AI/deepfake-specific offence section where the Act does not.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Preserve call records, the original video file, message metadata and transfer records.

BHARATIYA NYAYA SANHITA (BNS), 2023

APPLICABLE SECTIONS

Section 318 (4) — Cheating and dishonestly inducing delivery of property

The deception caused the parents to transfer ₹75,000.

Section 319 — Cheating by personation

The offender represented themselves as the victim.

Section 336 — Forgery

May apply if the synthetic video/other electronic record satisfies the statutory false-electronic-record and intent requirements.

Section 340 (2) — Using a forged document or electronic record as genuine

May apply if a forged electronic record was knowingly used as genuine to cheat.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 The core BNS theory is cheating plus personation. Forgery provisions are secondary and depend on whether the generated media is legally a false electronic record within the statute.

✓ STRENGTHS & RIGHTS

1 The parents' transfer directly demonstrates reliance on the impersonation.

✗ RISKS & OBLIGATIONS

1 Do not use old IPC 420 or non-existent BNS sections; the enacted BNS cheating provisions are sections 318 and 319.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Document exactly how the caller represented themselves and how the transfer was induced.

BHARATIYA SAKSHYA ADHINIYAM (BSA), 2023

APPLICABLE SECTIONS

Section 61 — Electronic or digital record

The synthetic video and call-related digital records are electronic evidence.

Section 62 — Special provisions as to evidence relating to electronic record

Electronic contents are proved under **section 63**.

Section 63 — Special provisions relating to electronic records

Relevant to proving the video/message/call records.

Section 39 (2) — Opinion of Examiner of Electronic Evidence

Useful where the authenticity/manipulation of the synthetic media is disputed.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 Because the key issue includes whether media was artificially generated, expert electronic-evidence analysis can be important in addition to ordinary electronic-record proof.

✓ STRENGTHS & RIGHTS

- 1 Original file/device/platform records can support forensic analysis.

✗ RISKS & OBLIGATIONS

- 1 Do not treat the absence of a special 'deepfake' evidence section as a gap; general electronic-evidence and expert provisions can apply.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Preserve original files rather than recompressed copies where possible.

DIGITAL PERSONAL DATA PROTECTION ACT (DPDP), 2023

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 The scenario establishes impersonation fraud, not a Data Fiduciary's unlawful processing. A DPDP issue would require additional facts about how a regulated entity collected, processed or disclosed the victim's personal data.

✓ STRENGTHS & RIGHTS

- 1 Avoids labelling AI impersonation itself as a DPDP breach.

✗ RISKS & OBLIGATIONS

- 1 Platform/provider processing could be a separate issue with additional facts.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Current-law caveat (29 Aug 2026): the key substantive private-sector DPDP duties relevant to these scenarios are scheduled to commence on 13 May 2027 under the 13 Nov 2025 commencement notification. Until then, treat these mappings as doctrinal/prospective rather than currently enforceable duties.

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